

TENTATIVE RULING(S) FOR JULY 2, 2026

Department S37 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2306856

ROSE VS CAMBRA-BRUNGARD et al

TENTATIVE RULING(S):

Before the Court is Defendant Cambra-Brungard's Motion to Compel Further Responses to Request for Production of Documents #53, 56 and 63. The issues have been fully briefed.

Objections

With her Opposition, Plaintiff Rose filed evidentiary objections to Johnson's Declaration at (1) p. 2:26-28, (2) Exhibit A, (3) ¶3, (4) ¶7, (5) ¶10, and (6) ¶11 because lacks foundation, speculation, irrelevant, ambiguous, argument, improper opinion, and/or calls for expert testimony: The Court SUSTAINS objections #1-2 (irrelevant) but OVERRULES objections #3-6.

Analysis

As a procedural matter, Plaintiff Rose argues that Defendant's Separate Statement is deficient because it fails to include the preamble and definitions, and does not cite to any case law to support reasons for further responses. Rules of Court, rule 3.1345(c) requires the Separate Statement to provide all information necessary to understand each discovery demand. Plaintiff does not explain how the lack of the preamble or definitions precludes understanding the demands or responses given, or preclude the evaluation of the demands and responses. Also, nothing in the rule mandates citing to case law to support a reason for why further responses should be given. The Separate Statement is adequate.

Substantively, at issue is three document demands:

#53. All documents evidencing Rose's claims for loss of income.

#58. All documents evidencing Rose's bonus structure during her employment with L'Oreal.

#63. All documents evidencing any bonuses Rose received from L'Oreal from 2021 through 2024.

To #53, Plaintiff objected because seeks attorney-client privilege or work product, invades financial privacy, and vague. To #58 and 63, Plaintiff objected that the demands invaded her privacy. Without waiving these objections, Plaintiff initially stated that she would produce responsive, non-privileged documents. In her amended responses for RFPs #53 and 63, Plaintiff identified that she has produced documents date-stamped ROSE_003232 to ROSE_003246. Plaintiff produced additional documents on February 9, 2026. In particular, Plaintiff has produced her 2024 W-2, her offer letter that showed her base salary for 2021, profit sharing calculation for her annual bonus, participation in long-term stock program, and separation agreement. (Canfield Decl. at ¶6.)

Defendant takes issue with the production being deficient as the demands sought Rose's actual income, wages, and bonuses, which necessarily includes her pay stubs, wage statements, and/or bank records reflecting wage and bonus deposits. Defendant notes that Plaintiff put her income and bonuses at issue in her deposition. In particular, she testified that

she is claiming loss of income and bonuses, as she lost her job with L'Oreal in November 2024, because of the issues within this litigation. (Johnson Decl. at ¶¶3, 17, Exh. H.)

Initially, based on Plaintiff's testimony, she waived any privacy interest that she may have in her wages and bonuses received from her employer at the time of the purchase of the Lake Arrowhead property. She put such financial information at issue. Also, she offers no analysis of how a wage record identifying wages and bonuses paid would constitute an attorney communication or work product.

Next, based on the documents identified produced, Plaintiff has not established that she has produced all documents in her possession, custody, or control that would be responsive. In particular, she does not offer that she lacks possession of any wage statements issued in 2024 or years prior that identify bonuses. Although she argues that she lacks such, then she should state that under a verified response. Also, she does not explain how she lacks the ability to obtain bank statements that can identify wage and bonus deposits. On the other hand, she produced her profit sharing calculation, which appears responsive to RFP #58.

Based on the foregoing, the Court COMPELS Plaintiff Rose to provide further responses to RFPs #53 and 63, but DENIES compelling a further response to RFP #58.

Sanctions. Both sides sought sanctions. Although Plaintiff prevailed on one RFP, she lost on the other two, and does not provide a valid excuse for not providing a verified response that she lacks possession, custody, or control of her wage records – wage statements or pay stubs – or produce bank statements (redacted) that identify wage and bonus deposits. Thus, Defendant is entitled to sanctions.

Attorney Johnson attests that her hourly rate is \$500, and her paralegal's hourly rate is \$150. She spent 4 hours on meeting and conferring, and preparing the motion, and the paralegal spent 3 hours to assemble and prepare the pleading and exhibits. Johnson further attests to incurring 3 hours to review the opposition, prepare the reply, and attend the hearing. (Johnson Decl. at ¶¶19-20.).

In reviewing the material, although 3 demands were at issue, the analysis for each was the same. Also, meeting and conferring would have been necessary regardless if the motion was

filed. Thus, seven hours to prepare the motion, review the opposition, prepare the reply, and attend the hearing is slightly high. Also, three hours to assemble and prepare the motion is overstated, especially when just needed to provide the discovery demand and responses, and a few pages from a deposition transcript. A reasonable sanction is \$2,150 [(\$500 x 4 hours) + (\$150 x 1)].

RULING

Based on the aforementioned analysis, the Court rules as follows:

- (1) GRANTS Defendant Cambra-Brungard's Motion to Compel, in part, and COMPEL further responses to RFPs #53 and 63 within 15 days of this hearing, subject to the right to redact all irrelevant information within produced bank statements;
- (2) DENIES Defendant Cambra-Brungaard's Motion to Compel to RFP #58;
- (3) ORDERS Plaintiff Rose and her attorneys of record, Eric Canfield of La Jolla Law Group, to pay \$2,150 in sanctions within 5 days of this hearing; and
- (4) SUSTAINS Plaintiff Rose's evidentiary objections #1-2 (irrelevant) but OVERRULES Plaintiff Rose's evidentiary objections #3-6.